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U.S. Department of State Diplomacy in Action

Trinidad and Tobago

Bureau of Democracy, Human Rights, and Labor

2005

March 8, 2006

Trinidad and Tobago is a parliamentary democracy governed by a prime minister and a bicameral legislature. The population was approximately 1.3 million. Tobago has a House of Assembly that has some administrative autonomy over local matters on that island. In the 2002 elections, which observers considered generally free and fair, Prime Minister Patrick Manning's People's National Movement (PNM) secured a 20 to 16 seat victory over the United National Congress (UNC). The civilian authorities generally maintained effective control of the security forces.

While the government generally respected the human rights of its citizens, there were problems in some areas:

police killings during apprehension and deaths in custody

police and guard abuse of detainees and prisoners

poor prison conditions

violence against women

inadequate services for vulnerable children

lack of opportunities for persons with disabilities

RESPECT FOR HUMAN RIGHTS

a. Arbitrary or Unlawful Deprivation of Life

The government or its agents did not commit any politically motivated killings; however, 13 persons died during the year while in police custody or at the hands of police.

Section 1 Respect for the Integrity of the Person, Including Freedom From:

On May 6, a policeman shot Mervyn Caton during communal celebrations at Point Fortin; he died in the hospital on May 19. The case was scheduled for a court hearing early in 2006. On May 27, an off-duty policeman shot and killed an unidentified man who had allegedly pointed his gun at the policeman during an attempted robbery of a taxi driver. This case was still under investigation by the police at year's end.

On October 11, police officers killed Jameel Alexander and Anthony Ellis during an exchange of gunfire in Port of Spain; on October 29, police officers killed Calvin Campbell, whom they were attempting to arrest on charges of kidnapping, robbery, and arms possession; and on November 23, police reportedly killed accused murderer Damian Gould, who had escaped from

a police holding cell in Scarborough, Tobago. At year's end all three cases were under investigation by the complaints division of the police service.

The number of killings of innocent citizens at the hands of gangs and individual criminals rose sharply: there were 386 such killings, surpassing the 259 citizens killed in 2004.

There was no definitive resolution of the investigations into any of the persons killed by police during 2004, including Galene Bonadie and Noel Stanley.

In April and July, the director of public prosecutions reiterated his request for a police report of the circumstances surrounding the 2001 death of Marcel McLeod, allegedly killed in a shootout with police. By year's end, however, the report had not been produced.

In August authorities ordered a retrial in the case of a prison officer charged with the 2001 death of prisoner Anton Cooper, but it had not taken place by year's end.

b. Disappearance

While there were no reports of politically motivated disappearances, there was a substantial increase in criminal kidnappings, including kidnappings for ransom. During the year 235 citizens were kidnapped, including 54 for ransom, compared with 177 and 28 respectively, during 2004.

A growing number of citizens and some commentators believed that corrupt police officers were involved in kidnappings. In August authorities arrested two members of the special reserve police for their alleged role in a kidnapping characterized by the media as "high-profile" because the two victims were sons of a well-known businessman and one of the police officers was himself a member of a prominent family. Authorities had the two officers under investigation at year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the constitution and law prohibit such practices, there were credible reports of police officers and prison guards mistreating individuals under arrest or in detention.

According to prison authorities, there were two cases before the courts at year's end in which prisoners charged prison guards with assault and battery. During the year authorities suspended 12 prison guards and pressed charges against 2 of them for poor conduct on the job, including possession of narcotics and provision of cell phones to inmates, reportedly under threat of violence. According to prison authorities, out of a prison guard complement of 2,050, 36 guards were under suspension and investigation for behavior incompatible with service as a law enforcement officer.

At year's end investigations and legal proceedings continued in the 2004 case of Camille Mitchell, who claimed that she suffered a miscarriage as a result of police mistreatment during a search of her home.

A court dismissed the 2004 case in which a Golden Grove Remand Center inmate sued five officers and the Attorney General's Office, claiming that prison guards beat him with a hose and sexually assaulted him with a wooden baton. The court determined that the inmate's allegations lacked substance.

A 2003 lawsuit, in which Danesh Mahabir charged police officers with assault, battery, and unlawful detention, continued in the courts at year's end.

Prison and Detention Center Conditions

Conditions in the prison system's eight facilities were upgraded but continued to be harsh. A 2002 government report on the prison service and the broader criminal justice system recommended transforming the system to focus on rehabilitation. To fulfill this goal, the government initially focused on overcrowding and unsanitary conditions at the Port of Spain prison. According to the newly appointed prison service commissioner, the number of prisoners at this facility, originally designed to accommodate 250 inmates, was reduced from 900 in 2004 to 650 at year's end. The number of prisoners in each 10- by 10-foot cell also was reduced from a maximum of 14 or more to a maximum of 5. The most recently built maximum-security prison in Arouca helped relieve the overcrowding at the Port of Spain prison. Other improvements included repainting, better lighting, improved toilet facilities, and more hygienic food service arrangements.

Significant staff shortages compelled the prison service to decrease the "airing" time provided to prison inmates. This issue served as the basis of a complaint filed against the prison service by death row inmate Alladin Mohammed, which was still pending at year's end.

Pretrial detainees were held separately from convicted prisoners, usually in the remand section of the same facilities as convicted prisoners. However, convicted prisoners often were held in the remand section until they exhausted their appeals.

The government permitted prison visits by independent human rights observers, but the Ministry of National Security must approve each visit. Following prison visits during the year, members of the Criminal Bar Association first threatened legal action if the government did not take steps to improve prison conditions, and then filed two constitutional motions in the high court in an effort to apply greater pressure upon the prison service. Those motions were pending at year's end.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention, and the government generally observed these prohibitions.

Role of the Police and Security Apparatus

The Ministry of National Security oversees the police service, the prison service, and the defense force. The police service maintains internal security, while the defense force is responsible for external security but also has certain domestic security responsibilities. An independent body, the Police Service Commission, makes hiring and firing decisions in the police service, and the ministry has little direct influence over changes in senior positions.

The national police force comprises 9 countrywide divisions, including 17 specialized branches, and has approximately 7 thousand members. The Police Service Commission, in consultation with the prime minister, appoints a commissioner of police to oversee the police force. Municipal police under the jurisdiction of 14 regional administrative bodies supplement the national police force. The Special Anticrime Unit, composed of both police and defense force personnel, combats violent crime-- including kidnappings for ransom--and carries out other security operations.

Police corruption continued to be a problem. On a number of occasions during the year, the authorities apprehended members of the police in connection with illegal drugs, firearms possession, and other illicit activities. The Police Complaints Authority receives complaints about the conduct of police officers for transmittal to the Complaints Division of the Police Service where uniformed officers investigate them. The authority simply monitors the division's investigations and its disciplinary measures. However, Police Service Commission restrictions limit the division's ability to dismiss police officers. The facts that the Police Complaints Authority has no power to investigate complaints and that those investigating complaints against the police are themselves police officers eroded the public's confidence in the entire police complaints process.

Arrest and Detention

A police officer may arrest a person either based on a warrant issued or authorized by a magistrate, or without a warrant when the officer witnesses the commission of an alleged offense. Detainees, as well as those summoned to appear before a magistrate, must appear in court within 48 hours. In the case of more serious offenses, the magistrate either commits the accused to prison on remand or allows the accused to post bail, pending a preliminary inquiry. Detainees were granted prompt access to a lawyer and to family members.

There is a functioning bail system, although persons charged with murder, treason, piracy, and hijacking are ineligible. Where bail is refused, magistrates advise the accused of their right to an attorney and, with few exceptions, allow them access to an attorney, once they are in custody and prior to any interrogation. In December parliament passed a bill that precludes the granting of bail to any person charged with kidnapping for ransom for a period of 60 days following the charge, as well as to individuals who have already been convicted twice of violent crimes.

The minister of national security may authorize preventive detention in order to preclude actions prejudicial to public safety, public order, or national defense, in which case the minister must state the grounds for the detention. There were no reports that the authorities abused this power.

There were no reports of political detainees.

Lengthy pretrial detention resulting from heavy court backlogs and an inefficient judicial system continued to be a problem. Out of a prison population of 3,730, 1,573 inmates were waiting to be tried at year's end. While the law requires waiting times for magistrate's court hearings to be no longer than 10 days, criminal indictees often waited months, if not years, for their trial dates in the high court.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, and the government generally respected this provision in practice. The judiciary provided citizens with a fair judicial process, albeit at a slow pace due to backlogs and inefficiencies.

The judiciary is divided into the Supreme Court of Judicature and the Magistracy. The Supreme Court is composed of the high court and a court of appeal. The Magistracy includes the summary courts and the petty civil courts. Civil matters can be heard by both the high court and petty civil court, with the petty civil court authorized to hear only cases involving damages of up to \$2,500 (TT\$15 thousand).

Trial Procedures

Magistrates try both minor and more serious offenses, but in the case of more serious offenses, the magistrate must conduct a preliminary inquiry. Trials are public, and juries are used in the high court. Defendants have the right to be present, are presumed innocent until proven guilty, and have the right to appeal. While all defendants have the right to consult with an attorney in a timely manner, an attorney is provided at public expense to defendants facing serious criminal charges, and the law requires the provision of an attorney to a person accused of murder. Although the courts may appoint attorneys for indigent persons charged with indictable offenses (serious crimes), an indigent person may refuse to accept an assigned attorney for cause and may obtain a replacement. Defendants can confront or question witnesses against them, can present witnesses and evidence on their own behalf, and have access to government-held evidence relevant to their cases.

Both civil and criminal appeals may be filed with the local court of appeal and ultimately with the Privy Council in London.

Although the regional Caribbean Court of Justice (CCJ), intended to be a final court of appeal for member states, was inaugurated in April, the government had not passed legislation for it to play this role. The CCJ has a separate original jurisdiction whereby it interprets and applies, for all 15 member states of the Caribbean Community (CARICOM), the treaty which established CARICOM as well as the agreement creating the Caribbean Single Market and Economy.

In a September 16 speech marking the opening of the annual law term, Chief Justice Satnarine Sharma described progress made during the year in modernizing some dilapidated court buildings and measures to speed up trials, such as replacement of antiquated court reporting systems with new audio-digital recording equipment as well as more efficient case management procedures. However, he also criticized declining behavioral standards and ethics on the part of certain members of the bar, citing a case in which he said the prosecuting attorney cross-examined a witness as brutally as if she were one of the accused murderers in the dock.

Political Prisoners

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home or Correspondence

The law prohibits such actions, and the government generally respected these prohibitions in practice.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The law provides for freedom of speech and of the press, and the government generally respected these rights in practice and did not restrict academic freedom or access to the Internet. An independent press, an effective judiciary, and a functioning democratic political system combined to ensure freedom of speech and of the press.

In May the telecommunications authority disseminated for public comment a proposed broadcasting code of conduct, in what it claimed to be an effort to moderate the interracial animosity which characterized some of the country's talk shows. However, media and broadcasting professionals and their associations criticized the plan so harshly as an infringement on the right to free speech that the authority withdrew the proposed code for possible redrafting at a later time.

b. Freedom of Peaceful Assembly and Association

The law provides for freedom of assembly and association, and the government generally respected these rights in practice.

c. Freedom of Religion

The law provides for freedom of religion, and the government generally respected this right in practice.

The government limits the number of foreign missionaries allowed to enter the country to 30 per denomination. Missionaries must meet standard requirements for an entry visa and must represent a registered religious group. They may not remain in the country for more than three years at a time, but may re-enter after a year's absence.

Societal Abuses and Discrimination

There were no reports of societal abuses or discrimination, including anti-Semitic acts. The Jewish community was very small.

For a more detailed discussion, see the [2005 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2005/\)](https://2005.state.gov/j/drl/rls/irf/2005/).d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The law provides for these rights, and the government generally respected them in practice.

The law prohibits forced exile, and it was not used.

In 2000 the government acceded to the 1951 UN Convention relating to the Status of Refugees and its 1967 protocol, but the government had not passed legislation to implement its obligations under the convention. The government cooperated with the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in assisting refugees and asylum seekers. The government placed asylum seekers in the care of the Living Water Community, a local Catholic social services agency, while their cases were reviewed by UNHCR and final resolution reached. Pending parliament's approval of legislation implementing the UN convention and its protocol, the Ministry of National Security's immigration division handled all requests for asylum on a case-by-case basis.

The government did not provide temporary protection to persons who may not qualify as refugees, but the Living Water Community provided such persons with needed social services.

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

The law provides citizens the right to change their government peacefully, and citizens exercised this right in practice through periodic, free, and fair elections held on the basis of universal suffrage.

Elections and Political Participation

The most recent national election was held in 2002, and observers found it to be generally free and fair. The two major political parties are the PNM, which is primarily but not exclusively Afro-Trinidadian, and the UNC, which is primarily but not exclusively Indo-Trinidadian. A majority of voters in the 2002 national election supported the PNM, which retained control of the government.

There were 18 women in the 67-seat legislature, excluding the female president of the Senate; 9 women in the cabinet; and 10 female judges on the high court and the court of appeal. Both major political parties reached out to voters from relatively small ethnic minorities, such as the Chinese, Syrian, Lebanese, and European-origin communities, and members of these groups held important positions in government. There were six members of these minorities in the legislature and two members of minorities in the cabinet.

Government Corruption and Transparency

There was a widespread and growing public perception of corruption in the country.

In April there were reports that Minister of Works and Transport and PNM Party Chairman Franklyn Khan and Minister of Energy and Energy Industries Eric Williams had received bribes from Dansam Dhansook, a local PNM councilman and businessman. While Williams maintained his innocence, Khan resigned his cabinet post in May. In November authorities arrested Khan and charged him with six counts of misbehavior in public office for allegedly accepting \$20 thousand (TT\$120 thousand) for providing a contract to Dhansook's firm for seismic services. In December Khan resigned his PNM party chairmanship, and the case against him was still in the courts, pending further investigation. At year's end authorities continued to investigate the allegations against Williams.

The courts continued to hear a case that implicated the most senior members of the 1995-2001 UNC government in embezzlement and bid-rigging on the Piarco Airport expansion project. In May authorities arrested former UNC Prime Minister Basdeo Panday and charged him with corruption for accepting a bribe that allegedly led the Panday government to favor a contractor on the Piarco project. Panday, UNC party chairman and leader of the opposition, spent some days in jail before being released on bail. After a brief court hearing in December, the matter was adjourned until 2006.

A committee of experts continued to work on reform of the public procurement regime that would enhance public accountability and reduce opportunities for corruption by government officials.

The Integrity in Public Life Act mandates that public officials disclose their assets, income, and liabilities to an integrity commission. However, a growing number of officials and candidates for public office were reluctant to comply with this provision, claiming that such disclosures would make them and their families a target of the increasing number of criminals engaged in kidnappings for ransom. Panday continued to contest a 2002 arraignment under this act for allegedly failing to declare a London bank account during his tenure as prime minister. After Panday tried unsuccessfully through the entire court system to have the charge against him dismissed, the case was scheduled for its first hearing in early 2006.

In December the Integrity Commission reportedly exempted judges from the disclosure provisions, which led eight independent members of the Senate, who are appointed by the president, to argue that they too should be exempted. At year's end the Integrity Commission formally requested the high court to rule on the constitutionality of exempting judges from the disclosure provisions of the Integrity in Public Life Act.

The Freedom of Information Act provides for public access to government documents, upon application. When critics charged that a growing number of public bodies were exempted from the act's coverage, the government countered that the exemptions were intended to avoid frivolous requests and searches for information.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

A number of domestic and international human rights groups generally operated without government restriction, investigating human rights cases and publishing their findings. Government officials generally were cooperative and responsive to their views.

The ombudsman investigates citizens' complaints concerning the administrative decisions of government agencies. Where there is evidence of a breach of duty, misconduct, or criminal offense, the ombudsman may refer the matter to the authority competent to take appropriate remedial action. The ombudsman has a quasi-autonomous status within the government and publishes a comprehensive annual report. In 2004 the ombudsman resolved 954 complaints, received 1,012 new complaints, and continued investigating 2,664 complaints carried over from previous years.

In 1999 the government withdrew from the American Convention on Human Rights. The convention states that such an action does not release a government from its obligations under the convention with respect to acts taken prior to the effective date of denunciation. In February and March the Inter-American Court of Human Rights issued rulings on cases predating the government's withdrawal; by year's end the government had not provided any official or public reaction to the rulings.

Section 5 Discrimination, Societal Abuses, and Trafficking in Persons

The government generally respected in practice the constitutional provisions for fundamental human rights and freedoms for all without discrimination based on race, origin, color, religion, or gender.

Women

Many community leaders asserted that abuse of women, particularly in the form of domestic violence, continued to be a significant problem. The law provides for protection orders separating the perpetrators of domestic violence, including abusive spouses, from their victims, as well as for penalties that include fines and imprisonment. While reliable national statistics were not available, women's groups estimated that from 20 to 25 percent of all women suffered abuse. Increased media attention to domestic violence resulted in a clear shift in public opinion from past views that had held that abuse of women in the home was a private matter.

NGOs charged that police enforcement of the law often was lax. According to both the government and NGOs, enforcement was weakened following the 1996 decentralization of the community policing unit specially trained to handle crimes against women. The Division of Gender Affairs (DGA) in the Ministry of Community Development, Culture, and Gender Affairs operated a 24-hour hot line for victims of rape, spousal abuse and other violence against women, referring callers to 8 shelters for battered women, a rape crisis center, counseling services, support groups, and other assistance.

Although rape, including spousal rape, is illegal and punishable by life imprisonment, the courts often handed down considerably shorter sentences. Both the government and NGOs estimated that many incidents of rape and other sexual crimes were unreported, partly due to perceived insensitivity on the part of the police.

Prostitution is illegal, and the authorities continued to monitor, investigate, and prosecute major operators believed to be engaged in soliciting for prostitution. In September authorities apprehended 28 women (26 Colombians and 2 Venezuelans) working in the capital's "red-light" district after they had entered the country illegally.

There are no laws specifically prohibiting sexual harassment. Although related statutes could be used to prosecute perpetrators of sexual harassment, and although some trade unions have incorporated antiharassment provisions in their contracts, both the government and NGOs suspected that many incidents of sexual harassment went unreported.

Women generally enjoyed the same legal rights as men, including employment, education, and inheritance rights. There are no laws or regulations requiring equal pay for equal work. While equal pay for men and women in public service is the rule rather than the exception, both the government and NGOs noted considerable disparities in pay between men and women in the private sector, particularly in agriculture.

The DGA had primary government responsibility for the protection of women's rights and women's advancement and sponsored income-generation workshops for unemployed single mothers, nontraditional skills training for women, and seminars for men on redefining masculinity.

Children

A lack of funds and expanding social needs challenged the government's ability to carry out its commitment to protect the rights and welfare of children.

Education is free, compulsory, and universal up to the age of 12. The Ministry of Education estimated that 89 percent of school-age children attended school. Public education is available through the age of 20, and most students achieved the equivalent of a high school diploma. Some parts of the public school system failed to meet the needs of the school-age population due to overcrowding, substandard physical facilities, and occasional classroom violence. The government committed resources to building new facilities and expanded access to free secondary education.

Medical care for children was widely available, with equal access for girls and boys.

The Domestic Violence Act provides protection for children abused at home. Abused children removed from the home were first assessed at a reception center for vulnerable children and then placed with relatives, government institutions, or nongovernmental organizations (NGOs). There was one reception center for vulnerable children. The Coalition against Domestic Violence operated Childline, a free and confidential telephone hot line, e-mail address, and Web site for at-risk or distressed children and young persons up to age 25. In 2004 Childline received 3,184 calls, 74 percent from girls and 26 percent from boys.

The law defines a child as under 18 years of age, outlaws corporal punishment for children, and prohibits sentencing a child to prison. Under the Marriage Act, the minimum legal age of marriage is 18 for both males and females. However, in practice the minimum legal age of marriage is determined by the distinct laws and attitudes of the various religious denominations:

under the Muslim Marriage and Divorce Act, the minimum legal age of marriage is 16 for males and 12 for females, while under the Hindu Marriage Act and the Orisa Marriage Act, the minimum legal age of marriage is 18 for males and 16 for females.

Trafficking in Persons

Although the law does not specifically prohibit trafficking in persons, there were no substantiated reports that persons were trafficked to, from, or within the country. In the event of trafficking, perpetrators can be prosecuted under several related laws, with penalties ranging from seven years' to life imprisonment. There were no prosecutions during the year.

The government had not designated a specific agency to combat trafficking in persons, and it sponsored no public awareness campaigns to address this issue during the year. However, in September the government cooperated with the International Organization for Migration in a seminar on trafficking in persons as a first step in promoting an understanding of trafficking in persons and assessing the extent of its prevalence in the country. Domestic NGOs were available to provide care and protection to trafficking victims.

Persons with Disabilities

There are no statutes either prohibiting discrimination on the basis of disability or mandating equal access for the disabled to the political process, employment, education, transportation, housing, health-care, and other citizen services. In practice persons with disabilities faced discrimination and denial of opportunities in the form of architectural barriers, employer reluctance to make necessary accommodations that would enable otherwise qualified job candidates to work, an absence of support services to assist children with special needs to study, lowered expectations of the abilities of persons with disabilities, condescending attitudes, and disrespect. According to the NGO Disabled People's International (DPI), the parliament building as well as many polling stations were inaccessible to wheelchair users. A 116-day demonstration led by DPI against National Flour Mills, a major public-private enterprise, in 2003 for its refusal to consider job applicants with severe disabilities for employment, did not prompt a change in corporate policy but did raise media and public awareness of the exclusionary practices and unequal treatment suffered by persons with disabilities.

The national library is widely regarded by the disabled community as a model of barrier-free design and genuinely equal service to patrons with disabilities. In January the University of the West Indies inaugurated, at its St. Augustine campus, a "disability studies" program in its department of behavioral sciences. At year's end the university was adding a research capability to complement its classroom activity in this subject area. In February a court was notified that the Prison Service Commission promoted prison officer Graeme Lewis to prison supervisor retroactively. Lewis had been passed over repeatedly for promotion after being confined to a wheelchair when an escaped convict shot him in 1990.

National/Racial/Ethnic Minorities

The country's diverse racial and ethnic groups lived together in what appeared on the surface to be peace and mutual respect. However, nonviolent racial tensions regularly emerged between Afro-Trinidadians and Indo-Trinidadians who each comprised approximately 40 percent of the population.

Indo-Trinidadians and persons of European, Middle Eastern, and Asian descent predominated in the private sector, and Indo-Trinidadians also predominated in agriculture. Afro-Trinidadians were employed heavily in the civil service, the police, and the defense force. Some Indo-Trinidadians asserted that they were not equally represented in senior civil service and protective service positions and among winners of state-sponsored housing grants and scholarships. In addition some Indo-Trinidadians denounced the use of the Trinity Cross as the country's highest honor, claiming that its Christian motif was not representative of a multireligious society.

Indigenous People

A very small group of people identified themselves as descendants of the country's original Amerindian population. The government effectively protected their civil and political rights, and they were not subject to discrimination.

Section 6 Worker Rights

a. The Right of Association

The law provides that all workers, including those in state-owned enterprises, may form and join unions of their own choosing without prior authorization. The law also provides for the mandatory recognition of a trade union when it represents 51 percent or more of the workers in a specified bargaining unit. According to the National Trade Union Center, one of two umbrella organizations in the labor movement, some 22 to 24 percent of the workforce was organized in approximately 25 active unions. Most unions were independent of government or political party control, although the Sugar Workers' Union historically was allied with the UNC. A union also may bring a request for enforcement to the Industrial Court, which may order employers found guilty of antiunion activities to reinstate workers and pay compensation, or may impose other penalties including imprisonment.

b. The Right to Organize and Bargain Collectively

The law allows unions to conduct their activities without interference, to participate in collective bargaining and to strike, and the government protected these rights in practice. However, employees in "essential services," such as police and teachers, do not have the right to strike. These employees negotiate with the government's chief personnel officer to resolve labor disputes. In May the International Labor Organization (ILO) criticized the government's definition of "essential services" as too broad and urged parliament to pass legislation to narrow the definition. There was no official response to the ILO request. There were no significant legal strikes during the year.

There are several export processing zones where the same labor laws are in effect as in the rest of the country.

c. Prohibition of Forced or Compulsory Labor

Although the law does not specifically prohibit forced or compulsory labor, including by children, there were no reports that such practices occurred.

d. Prohibition of Child Labor and Minimum Age for Employment

The minimum legal age for workers is 12 years. Children from 12 to 14 years of age may work only in family businesses. Children under the age of 18 may work legally only during daylight hours, with the exception that 16- to 18-year-olds may work at night in sugar factories. The Ministry of Labor and Small and Micro Enterprise Development and the Social Services Delivery Unit in the Office of the Prime Minister are responsible for enforcing child labor provisions. However, enforcement was not consistent since there was no comprehensive government policy on child labor and no formal mechanisms for receiving, investigating, and resolving child labor complaints.

There was no organized exploitation of child labor. A 2004 study by the UN Children's Fund estimated that 2 percent of children from 5 to 14 years of age were engaged in paid work.

The government had not passed implementing legislation for ILO conventions 182 and 138, both of which it has ratified. The National Steering Committee on the Prevention and Elimination of Child Labor completed a comprehensive draft national policy on child labor, which awaited cabinet approval at year's end.

e. Acceptable Conditions of Work

The national minimum wage is \$1.50 (TT\$9.00) per hour, which did not provide a decent standard of living for a worker and family. Actual wages varied considerably among industries, and most workers earned more than the minimum wage. The labor ministry enforced minimum wage regulations effectively.

The law establishes a 40-hour workweek, a daily period for lunch or rest, and premium pay for overtime. The law does not prohibit excessive or compulsory overtime.

The law establishes health and safety standards in certain industries and provides for inspections to monitor and enforce compliance. The law protects workers who file complaints with the labor ministry regarding illegal or hazardous working conditions. If complainants refuse to comply with an order that would place them in danger, and if it is determined upon inspection that hazardous conditions exist in the workplace, the complainants are absolved from blame. A number of highly publicized industrial accidents during the year galvanized the trade union movement into pressuring the government, through street demonstrations, to put into effect a stronger Occupational Safety and Health bill that parliament had already passed and to which the president had already assented. However, the government was intent on amending the bill and did not submit a revised bill to parliament by year's end.

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